

106	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	1.Motion to Compel Answers to Form Interrogatories (ROA 57) 2. Motion to Compel Answers to Special Interrogatories (ROA 56) 3.Motion to Deem Facts Admitted (ROA 58) 4. Motion to Compel Production (ROA 59) 5. Case Management Conference <u>Motion No. 1: Compel Responses to Special Interrogatories, Set One</u> Plaintiff Harvey Quinn’s unopposed motion to compel defendant VPR Ops, LLC to answer without objection Special Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant VPR Ops, LLC within 20 days’ notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030. <u>Motion No. 2: Compel Responses to Form Interrogatories, Set One</u> Plaintiff Harvey Quinn’s unopposed motion to compel defendant VPR Ops, LLC to answer without objection plaintiff’s Request for Identification and Production of Documents, Set One, is GRANTED. Responses are due within 30 days’ notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant VPR Ops, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030. <u>Motion No. 3: Compel Responses to Request for Identification and Production of Documents, Set One</u> Plaintiff Harvey Quinn’s unopposed motion to compel defendant VPR Ops, LLC to answer without objection plaintiff’s Special Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant VPR Ops, LLC within 20 days’ notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030. <u>Motion No. 4: Deem Requests for Admission, Set One, Admitted</u>
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		Plaintiff Harvey Quinn’s unopposed motion to deem admitted each Request for Admission, Set One, served on Defendant VPR Ops, LLC, is GRANTED. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant VPR Ops, LLC within 20 days’ notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030, 2033.280, subd. (c). Plaintiff is ordered to give notice of all of the above.
107	Benitez vs. LAZ Parking California, LLC 2024-01441429	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Moises Benitez and Walter David Rodriguez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2024, Plaintiffs Moises Benitez and Walter David Rodriguez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendants LAZ Parking California LLC and Alan Lazowski. (ROA #2.) Defendant answered on 2/14/2025. (ROA #23.) The operative complaint is the first amended complaint (FAC), filed on 1/13/2026 pursuant to the Court’s order granting leave, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #59.) On 2/13/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$2,500,000. The GSA includes \$100,000 allocated for PAGA penalties. On 6/18/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #106.) Counsel then submitted supplemental materials, including an Amended Class Action and PAGA Settlement Agreement and Class Notice (“Amended Settlement Agreement”). (ROA #104, Exh. 1.) Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.